

House File 1041

H-1359

1 Amend House File 1041 as follows:

2 1. By striking everything after the enacting clause and
3 inserting:

4 <DIVISION I

5 SPORTS WAGERING RECEIPTS

6 Section 1. Section 8.57I, subsection 3, Code 2025, is
7 amended to read as follows:

8 3. a. Moneys in the sports wagering receipts fund in a
9 fiscal year shall be used as directed by the general assembly.

10 b. For the fiscal year beginning July 1, 2025, and each
11 fiscal year thereafter, there is appropriated from the sports
12 wagering receipts fund to the public safety equipment fund
13 created in section 80.48 eight million dollars. Subsections 4
14 and 5 do not apply to moneys appropriated under this paragraph.

15 Sec. 2. SPORTS WAGERING RECEIPTS FUND — DEPARTMENT OF
16 EDUCATION — EDUCATION SUPPORT PERSONNEL SALARY SUPPLEMENT —
17 FY 2025-2026.

18 1. There is appropriated from the sports wagering receipts
19 fund created in section 8.57I to the department of education
20 for the fiscal year beginning July 1, 2025, and ending June 30,
21 2026, the following amount, or so much thereof as is necessary,
22 to be used for the purposes designated:

23 To supplement education support personnel compensation:

24 \$ 14,000,000

25 2. Moneys appropriated in this section are miscellaneous
26 income as defined in section 257.2 and shall not be included
27 in any computation of district cost under chapter 257 for any
28 budget year.

29 3. Moneys appropriated in this section shall be used to
30 provide a funding supplement to each school district during the
31 fiscal year beginning July 1, 2025, to supplement education
32 support personnel compensation.

33 4. In order to receive the funding supplement, a school
34 district shall first report to the department of education
35 on or before July 1, 2025, the number of education support

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1 personnel employed by the school district, including all
2 other information related to such personnel required by the
3 department of education. Each school district's funding
4 supplement amount shall be equal to \$14,000,000 multiplied by
5 the quotient of the school district's budget enrollment for the
6 budget year beginning July 1, 2024, divided by the statewide
7 total budget enrollment for the budget year beginning July 1,
8 2024.

9 5. For purposes of this section, "education support
10 personnel" means regular and part-time employees of a school
11 district who are not salaried.

12 6. The payment of funding supplement amounts under this
13 section shall be paid by the department of education at the
14 same time and in the same manner as foundation aid is paid
15 under section 257.16 for the fiscal year beginning July 1,
16 2025, and may be included in the monthly payment of state aid
17 under section 257.16, subsection 2.

18 Sec. 3. SPORTS WAGERING RECEIPTS FUND — DEPARTMENT OF
19 EDUCATION DIVISION OF SPECIAL EDUCATION — FY 2025-2026. There
20 is appropriated from the sports wagering receipts fund created
21 in section 8.57I to the department of education for the fiscal
22 year beginning July 1, 2025, and ending June 30, 2026, the
23 following amount, or so much thereof as is necessary, to be
24 used for the purposes designated:

25 For the division of special education, including general
26 supervision, oversight, compliance, employee salaries, support,
27 maintenance, and miscellaneous purposes within the area
28 education agency regions and the department of education main
29 office:

30 \$ 5,000,000

31 Sec. 4. SPORTS WAGERING RECEIPTS FUND — IOWA FILM
32 PRODUCTION INCENTIVE FUND — FY 2025-2026. There is
33 appropriated from the sports wagering receipts fund created in
34 section 8.57I to the economic development authority for the
35 fiscal year beginning July 1, 2025, and ending June 30, 2026,

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1 the following amount, or so much thereof as is necessary, to be
2 used for the purposes designated:

3 For deposit in the Iowa film production incentive fund
4 created in section 15.517, if enacted by 2025 Iowa Acts, Senate
5 File 657, section 78:

6 \$ 4,000,000

7 Sec. 5. SPORTS WAGERING RECEIPTS FUND — MAJOR EVENTS AND
8 TOURISM PROGRAM — FY 2025-2026. There is appropriated from
9 the sports wagering receipts fund created in section 8.57I
10 to the economic development authority for the fiscal year
11 beginning July 1, 2025, and ending June 30, 2026, the following
12 amount, or so much thereof as is necessary, to be used for the
13 purposes designated:

14 For deposit in the Iowa major events and tourism fund created
15 in section 15G.104, as enacted by this Act:

16 \$ 4,000,000

17 Sec. 6. EFFECTIVE DATE. The following, being deemed of
18 immediate importance, takes effect upon enactment:

19 The section of this division of this Act appropriating
20 moneys to the department of education for an education support
21 personnel salary supplement.

22 DIVISION II

23 IOWA MAJOR EVENTS AND TOURISM PROGRAM AND FUND

24 Sec. 7. NEW SECTION. 15G.101 Definitions.

25 As used in this chapter, unless the context otherwise
26 requires:

- 27 1. "Board" means the same as defined in section 15.102.
28 2. "Entity" means an Iowa nonprofit organization established
29 to promote economic development and tourism in an area.
30 3. "Event" means a tourism-oriented athletic contest,
31 convention, music festival, or art festival.
32 4. "Financial assistance" means assistance provided only
33 from the funds, rights, and assets legally available to the
34 authority and includes but is not limited to assistance in the
35 form of grants.

1 5. *"Fund"* means the Iowa major events and tourism fund
2 established in section 15G.104.

3 6. *"Program"* means the Iowa major events and tourism program
4 established in section 15G.102.

5 Sec. 8. NEW SECTION. 15G.102 Iowa major events and tourism
6 program — purpose.

7 1. The authority shall establish and administer the
8 Iowa major events and tourism program to provide financial
9 assistance to eligible entities that support events in this
10 state, or support events involving a geographic region that
11 includes this state, and the event generates large attendance,
12 significant publicity, and has a measurable economic impact on
13 this state.

14 2. The program shall be administered for the purpose of
15 awarding financial assistance to an eligible entity for any of
16 the following purposes:

17 a. To pay for or reimburse the costs incurred by the entity
18 to apply or bid for selection as the site for the event.

19 b. To pay for or reimburse the costs incurred by the entity
20 to plan or to conduct the event, including any fees charged by
21 a site selection organization as a prerequisite to hosting the
22 event, including but not limited to hosting fees, sanctioning
23 fees, participation fees, operational fees, or bid fees.

24 Sec. 9. NEW SECTION. 15G.103 Program — application,
25 review, eligibility, and funding.

26 1. An application for financial assistance under the
27 program shall be submitted to the authority. For each
28 application that meets the eligibility criteria under
29 subsection 2, the authority shall conduct a staff evaluation
30 of the application and forward the application and staff
31 evaluation to the board.

32 2. a. The authority shall establish eligibility criteria
33 for the program by rule. The eligibility criteria must include
34 all of the following:

35 (1) The entity must currently be involved in the bidding and

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1 selection process for the event for which the entity submits
2 an application.

3 (2) The entity's application under subsection 1 must
4 include an economic analysis of the event that includes but is
5 not limited to all of the following:

6 (a) Projected hotel and motel room occupancies during the
7 event.

8 (b) Projected number of event attendees from this state,
9 other states, and other countries.

10 b. Notwithstanding paragraph "a", an entity shall be deemed
11 eligible for the program if any of the following apply:

12 (1) After a highly competitive bidding and selection
13 process involving potential sites not located in this state, a
14 location in Iowa has been selected for the entity's event.

15 (2) This state serves as the sole site for the entity's
16 event.

17 (3) The sole site for the entity's event is a geographical
18 region that includes this state and one or more contiguous
19 states.

20 3. When evaluating an application, the authority shall
21 consider, at a minimum, all of the following:

22 a. The potential impact of the event on the local, regional,
23 and state economies.

24 b. The event's potential to attract visitors from this
25 state, other states, and other countries.

26 c. The amount of positive advertising or media coverage the
27 event may generate.

28 d. The quality, size, and scope of the event.

29 e. The ratio of public-to-private investment required for
30 the event.

31 4. a. (1) Upon review of the staff evaluation, the board
32 shall make the final funding decision on each application
33 and may approve, deny, defer, or modify each application, in
34 the board's discretion, to fund as many events as possible
35 with the moneys available. The board and the authority may

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1 negotiate with an eligible applicant regarding the details of
2 the applicant's proposed event and the amount and terms of
3 any financial assistance. In making final funding decisions
4 pursuant to this subsection, the board and the authority shall
5 be exempt from chapter 17A.

6 (2) An application and staff evaluation forwarded to
7 the board under subsection 1 shall remain eligible for
8 consideration by the board under subparagraph (1) for up to two
9 years from the date of receipt of the application by the board.

10 b. In order to be awarded financial assistance under the
11 program, an applicant must demonstrate the ability to provide
12 matching funds for the event that equal at least fifty percent
13 of the award of financial assistance.

14 Sec. 10. NEW SECTION. 15G.104 Iowa major events and tourism
15 fund.

16 1. a. The authority shall establish an Iowa major events
17 and tourism fund pursuant to section 15.106A, subsection 1,
18 paragraph "o", for purposes of providing financial assistance
19 as described in this chapter. The fund may be administered as
20 a revolving fund and shall consist of any moneys transferred to
21 the fund and any moneys appropriated by the general assembly
22 for purposes of this chapter.

23 b. (1) Notwithstanding section 8.33, moneys appropriated
24 in this section that remain unencumbered or unobligated at the
25 close of the fiscal year shall not revert but shall remain
26 available for expenditure for the purposes designated until the
27 close of the fiscal year following the succeeding fiscal year.

28 (2) Moneys encumbered or obligated pursuant to financial
29 assistance awarded under section 15G.103, subsection 4, shall
30 be disbursed by the authority within five calendar years from
31 the date of encumbrance or obligation, or the moneys shall
32 revert to the state treasury and shall be credited to the funds
33 from which the appropriations were made as provided in section
34 8.33.

35 c. Notwithstanding section 12C.7, subsection 2, interest or

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1 earnings on moneys deposited in the fund shall be credited to
2 the fund.

3 2. a. Moneys in the fund are appropriated to the authority
4 for purposes of providing financial assistance under the
5 program. The authority shall not use more than five percent
6 of the moneys in the fund at the beginning of each fiscal year
7 for purposes of administrative costs, technical assistance, and
8 other program support.

9 b. An entity that is awarded financial assistance pursuant
10 to this chapter is not eligible to receive financial assistance
11 under the sports tourism infrastructure program pursuant to
12 chapter 15F, subchapter IV.

13 DIVISION III

14 SPORTS TOURISM MARKETING PROGRAM AND FUND — REPEAL

15 Sec. 11. Section 15F.401, subsection 1, paragraph a, Code
16 2025, is amended to read as follows:

17 a. The authority shall establish, and, at the direction
18 of the board, shall administer a sports tourism ~~marketing and~~
19 infrastructure program to provide financial assistance ~~for~~
20 ~~projects that promote sporting events or for infrastructure~~
21 projects supporting sporting events for organizations of
22 accredited colleges and universities, professional sporting
23 events, and other sporting events in the state.

24 Sec. 12. Section 15F.401, subsection 1, paragraph b, Code
25 2025, is amended by adding the following new subparagraph:

26 NEW SUBPARAGRAPH. (03) "*Fund*" means the sports tourism
27 infrastructure program fund established in section 15F.404.

28 Sec. 13. Section 15F.401, subsection 2, paragraph a,
29 subparagraph (1), Code 2025, is amended by striking the
30 subparagraph.

31 Sec. 14. Section 15F.401, subsection 2, paragraph a,
32 subparagraph (2), Code 2025, is amended to read as follows:

33 ~~{2}~~ A city or county in the state, or a public entity
34 ~~that is a convention and visitors bureau or a district~~
35 nonprofit organization, may apply to the authority be

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1 eligible for financial assistance from the sports tourism
2 ~~infrastructure program fund created in section 15F.404~~ fund for
3 an infrastructure project that actively and directly supports
4 sporting events for accredited colleges and universities,
5 professional sporting events, and other sporting events in the
6 area served by the city, county, or public entity. However,
7 financial assistance shall not be provided to ~~an applicant a~~
8 public entity that is a nonprofit organization from the ~~sports~~
9 ~~tourism infrastructure program fund created in section 15F.404~~
10 fund for infrastructure projects located in a reinvestment
11 district as defined and approved by the authority pursuant to
12 section 15J.4 or to applicants that have received a rebate
13 of sales tax imposed and collected by retailers pursuant to
14 section 423.4, subsection 5. A city, county, or public entity
15 that is a nonprofit organization that receives financial
16 assistance under this paragraph is not eligible to receive
17 financial assistance under the Iowa major events and tourism
18 program under chapter 15G.

19 Sec. 15. Section 15F.401, subsection 4, paragraph b, Code
20 2025, is amended to read as follows:

21 b. An applicant under the program shall not receive
22 financial assistance from the ~~sports tourism marketing~~
23 ~~program fund created in section 15F.403~~ or the ~~sports tourism~~
24 ~~infrastructure program fund created in section 15F.404~~ fund
25 in an amount exceeding fifty percent of the total cost of the
26 project.

27 Sec. 16. Section 15F.401, subsection 5, Code 2025, is
28 amended to read as follows:

29 5. The board shall make final funding decisions on
30 each application and may approve, deny, defer, or modify
31 applications for financial assistance under the sports tourism
32 ~~marketing and~~ infrastructure program, in its discretion, in
33 order to fund as many projects with the moneys available as
34 possible. The board and the authority may negotiate with
35 applicants regarding the details of projects and the amount and

1 terms of any award. ~~The total amount of financial assistance~~
2 ~~provided to an applicant from the sports tourism marketing~~
3 ~~program fund created in section 15F.403 in any one fiscal year~~
4 ~~shall not exceed five hundred thousand dollars.~~ In making
5 final funding decisions pursuant to [this subsection](#), the board
6 and the authority are exempt from [chapter 17A](#).

7 Sec. 17. Section 15F.401, subsection 6, Code 2025, is
8 amended by striking the subsection and inserting in lieu
9 thereof the following:

10 6. A city, county, or public entity shall not use financial
11 assistance received under the program from the fund as
12 reimbursement for completed projects.

13 Sec. 18. Section 15F.402, subsections 1 and 2, Code 2025,
14 are amended to read as follows:

15 1. Applications for assistance under the sports tourism
16 ~~marketing and~~ infrastructure program established in section
17 15F.401 shall be submitted to the authority. For those
18 applications that meet the eligibility criteria, the authority
19 shall forward the applications to the board and provide a staff
20 review analysis and evaluation to the sports tourism program
21 review committee referred to in [subsection 2](#) and to the board.

22 2. A review committee composed of five members of the
23 board shall review sports tourism ~~marketing and~~ infrastructure
24 program applications forwarded to the board and make
25 recommendations regarding the applications to the authority.

26 Sec. 19. Section 15F.404, subsection 2, paragraph a, Code
27 2025, is amended to read as follows:

28 a. Moneys in the fund are appropriated to the authority for
29 purposes of providing financial assistance to cities, counties,
30 and eligible public entities under the sports tourism ~~marketing~~
31 ~~and~~ infrastructure program established and administered
32 pursuant to [this subchapter](#).

33 Sec. 20. REPEAL. Section 15F.403, Code 2025, is repealed.

34 Sec. 21. TRANSFER OF MONEYS. On the effective date of
35 this division of this Act, any moneys remaining in the sports

1 tourism marketing program fund in section 15F.403, Code 2025,
2 shall be transferred to the Iowa major events tourism fund
3 established in section 15G.104, as enacted in this Act.>
4 2. Title page, by striking lines 1 and 2 and inserting
5 <An Act relating to sports wagering and tourism, making
6 appropriations, and including effective date provisions.>

GEHLBACH of Dallas